
FACT CRASHING
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PRIORITIZE. ACCELERATE. RESOLVE.

DAN REGARD

FOREWORD



Twenty years ago, I was fortunate enough to be invited to join the Sedona Conference where I worked with a team of forward-thinking attorneys, judges, and consultants to draft and publish the original Sedona Principles.

These ideas and concepts helped usher in a new generation of litigants to the world of Electronically Stored Information (ESI) and e-discovery.

E-discovery was not new, but it was limited to a few cases and a few practitioners. With the release of the Sedona Principles, however, a body of knowledge, a list of guidelines, and a basis for best practices was disseminated and made available to everyone. And it gave everyone a way to deal with the elephant in the room --- the emergence and explosion of e-mail as litigation evidence.

Yet, during those twenty years and, indeed, for a solid decade prior to that seminal event, I was already working with litigants to deal with a different type of ESI --- databases. And over the past 30 years, I have witnessed the increased frequency of databases being relevant to litigation, and an increase in the

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number of databases per case. And, eventually, have seen cases, large and small, where the primary evidence considered for merits and damages was databases.

This was very different from e-mail. In fact, we call those "zero-email" cases. Clearly something was happening. And although it has taken decades to ripen, in the eyes of the legal world, 30 years is a blink of an eye. But in the eyes of the technological world, 30 years is an eternity.

BLINK OF AN EYE TO THE LAW,
BUT AN ETERNITY TO TECHNOLOGY.

As we began helping more and more parties deal with litigation in the role of consultant, advisor, expert witness, data neutral, or special master, we observed that the impact of databases was huge, but the gap of knowledge was vast. People began encouraging me to write out what I had learned over the past 30-years. This book has been a work-in-progress for over 5 years. But it also been a work-applied on case-loads during that same time.

I have tried to make the techniques technologically agnostic. And I believe that these principles and guidelines would have been equally applicable 30 years ago as they are today, and I hope that they will provide value for years to come. But I recognize that technology is constantly changing and that we are only at the beginning of understanding how profound an effect technology will have on society, much less the practice of law. Therefore, this book will always be a work-in-progress.

I'll close by saying that although I have the privilege of writing this, it is truly the work-product of hundreds of colleagues, peers, clients, judges, and opposing parties who have taught, shaped, and challenged these ideas and allowed them to be tested and proven.

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FACT CRASHING

INTRODUCTION

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– FACT CRASHING –

INTRODUCTION

Fact-Crashing /fakt-'krashing/ ***noun*** – a digital thing that is known or proven to be true. ***verb***- adding project resources to critical path task(s). ***verb***- the acceleration of dispute resolution through the prioritization of data-based evidence.

Fact Crashing is a portmanteau, a new word made from two pre-existing words. Fact being any digital truth recorded by the systems that permeate our digital lives, and Crashing, a construction project management concept used to describe the acceleration of one phase of a project to the benefit of the entire project.

In the case of Fact Crashing, we have found that cases that prioritize dealing with structured data can provide a significant procedural, tactical, and even strategic advantage – including the repeated experience of speeding up dispute resolution by providing both parties with quicker access to mutually agreeable (or mutually obvious) facts. In the case of Fact Crashing, we have found cases that prioritize structured data can provide a significant procedural, tactical, and even strategic advantage.

This includes the repeated experience of speeding up dispute resolution by providing both parties with quicker access to mutually agreeable (or mutually obvious) facts.

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WHY DOES THIS HELP?

It circumvents two of the biggest barriers to dispute resolution: a historical sparsity of facts, and a modern abundance of emails and other unstructured digital documents.

A sparsity of evidentiary facts, normal in most litigation, is a challenge. This necessarily leads to depositions, motions, and trial, all with the end goal of gathering supporting evidence for the judge or jury to use in their role as the "trier of fact" to allow them to determine ultimate facts. This evidence, often incomplete, leads to juries using deductions, abductions, and inferences to fill in gaps.

However, when there is an abundance of evidentiary facts, the path to resolution can accelerate, shorten, or sometimes skip trial altogether. This actually happens when we focus on ambient, contextual, and transactional data.

When there is so much evidentiary data, the parties themselves can see the writing on the wall and agree to the ultimate facts.

At the same time, the current abundance of emails and unstructured documents is a challenge. This leads to the high cost of document review, classification, privilege review, and production. While the volume of written content is dramatically increasing on a year-over-year basis, consider what would happen if alternative sources of facts could reduce, or even eliminate, the need for the review of documents.

> ***IF YOU HAD DONE THIS FIRST, YOU MIGHT HAVE BEEN FINISHED BY NOW.***

This trade-off happens when we focus on contextual and transactional data. That is the purpose of Fact Crashing – focusing on ambient, contextual, and transactional data earlier and more broadly.

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If all of this were true, and if this data can reduce costs and accelerate resolution, why don't we do it more often? Because it's new. It's different. It's confusing. It's technical.

It is human nature to stick with the methods and processes which are most familiar to us, even when those methods and processes will not provide an optimal solution. This is sometimes referred to as the streetlight effect.

It may also be because the legal industry lacks the vocabulary, skills, tools, or guidelines to deal with it. For this reason, we've worked for the past few years to develop these nine principles of Fact Crashing.

These principles provide the missing vocabulary, tools, and guidelines. They summarize decades of experience and learning on how to identify, qualify, prioritize, and apply structured data to the benefit of resolving disputes, predominately in a legal setting.

The Principles of Fact Crashing provide the necessary tools to change the way we litigate. They provide words and vocabulary, that outline the tools we have used successfully for years to guide parties to closure through the thoughtful application of data.

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PRINCIPLE 1

DATA IS EVIDENCE AND DISCOVERABLE

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– PRINCIPLE 1 –

DATA IS EVIDENCE AND DISCOVERABLE

"In 1970, Rule 34(a) was amended to include discovery of data compilations, anticipating that the use of computerized information would increase."

- FRCP Rule 34, 2006 Committee Notes

In Principle I, we focus on the concept of Fact Crashing – which is the acceleration of dispute resolution through the prioritization of data-based evidence.

This data-based evidence is not emails (although emails may contribute to it). Instead, we are talking about ambient, contextual, and transactional data. This is what makes up most databases, log files, cell-phone records, and text-messages. This is the data glue that holds our digital lives and activities together.

In order to understand Fact Crashing and its benefits, we must first define some sound principles.

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Principle I: *Data Is Evidence And Discoverable*

While this seems obvious to some, it's not obvious to all. The Federal Rules of Civil Procedure (FRCP) Rule 34, which sets the standards to produce documents in federal court, in a laundry list of discoverable items subject to production, inspection, copying, testing, or sampling, explicitly includes "Data Compilations" (FRCP 34(a)(1)(A)).

The committee notes from 1970 amendments discuss printouts of computer data. The notes from the 2006 amendments (the "E-Discovery Amendments") confirm that Rule 34(a) is amended to put ESI on equal footing with paper discovery. This means "all current types of computer-based information" are flexible enough to encompass future changes and developments.

At the same time, the Federal Rules of Evidence (FRE), especially rules FRE 902(13) & (14), contain language specific to the "authenticity of electronic evidence" and the authentication of data copied from an electronic device, storage medium, or an electronic file. There are other references to data in the federal rules of evidence including rules FRE 702 "facts or data" and FRE 705 "facts or data."

If this were not sufficient, we have a rich history of jurisprudence and are fortunate enough to have the Sedona Conference who has published multiple guidance papers and principles related to e-discovery, and database discovery.

Most interestingly, we meet the occasional person who accepts that e-mails are discoverable, but databases are not. To that person, we have the following fun fact: e-mail systems are databases.

E-MAIL SYSTEMS ARE DATABASES.

Once we accept the fact that 'Data is Evidence and Discoverable,' the rest is (mostly) easy.

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PRINCIPLE 2

DATA SHOULD BE ADDRESSED EARLY

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– PRINCIPLE 2 –

DATA SHOULD BE ADDRESSED EARLY

Fact Crashing is the acceleration of the consideration of ACTION data to th e benefit of resolving disputes.

(ACTION = Ambient, Contextual, Transactional, IoT, Operational, Navigational)



Case after case, we are finding structured data can have a meaningful impact on the claims and defenses, and can lead to partial, or even full, resolution of the dispute.

At the same time, to borrow a term of art from Economics, data has a significantly different "cost curve" as compared to emails and documents – usually resulting in lower costs for greater impact.

Therefore, it makes sense to deal with evidence that can be more dispositive, less burdensome, and more cost efficient, sooner.

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THERE ARE SOME OTHER CONSIDERATIONS, HOWEVER, THAT ARE IN FAVOR OF DEALING WITH DATA SOONER.



FIRST

Dealing with data may be a new experience for you. This is a good reason to get an early start. This will give you and your team adequate time to become familiar with the different handling, documentation, and analysis appropriate for structured data. We expand on this aspect (the care and handling of structured data versus unstructured data) later in this book.



SECOND

The availability of data from multiple sources is also a reason to get an early start. You may be dealing with data related to time-and-attendance, invoices, fleet GPS, phone logs, email metadata, text messages, usage logs, etc. Experience tells us that each data source will have a compound contributory effect on the value of the evidence. The more systems you combine, the more each part is worth. But the greater the variety, the more time it will take to deal with each system.



THIRD

Some data will be held by third parties. The subpoena process can take time, and some data sources may only be available after a chain of subpoenas are executed. Do you want to know who posted certain online blog comments? Be prepared to send 3 subpoenas: 1) to the blog site for the email address of the posting person, 2) to the email provider for IP information on that particular user account, and 3) to the Internet Service Provider for the holder of that particular IP address. Each subpoena might take 30 to 90 days.

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THE KEY IS TO START EARLY.

A chain of those three subpoenas can simply take time, even while the answers may be dispositive.

CASE STUDY

Seven Years of Motion Practice, then Fact Crashing

We worked on a class action of thousands of truck drivers. The case had been in motion practice for 7 years, and now was headed to trial. Discovery started. Then we applied Fact Crashing. The parties were able to entirely settle the dispute only a few months after we were engaged – entirely based on the data.

Granted, we dealt with 90 billion potential records from 40 different sources of 20 different systems. But, the answers were dispositive to the decertification of the class. Knowing at the end of the case how dispositive the databases were, there clearly would have been an advantage (to everyone) to dealing with the data sooner during the 7-year history of that case.

This was a zero-email case.

WHY DO PARTIES NOT DEAL WITH DATA SOONER?

Due to the historical (and growing) high cost of traditional discovery, most parties rightfully seek to exhaust all other alternatives before engaging in discovery. This includes all manners of motion practice.

Exhaustive Motion Practice is a consequence of the high cost of traditional discovery. Fact Crashing changes that.

It is only now, where we have the emergence of so much abundant, objective, detailed,

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PRINCIPLE 2

DEEP DIVE

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– PRINCIPLE 2 –

DEEP DIVE

Not all evidence is the same.
Not all data is the same.

In traditional discovery, parties deal with many categories of evidence, but arguably only a few categories really matter - physical, testimonial, documentary, and demonstrative.

Within this paradigm, Electronically Stored Information (ESI) is considered documentary evidence. Within the world of ESI, there are two categories of data: structured data and unstructured data.

MOST OF US ARE MOST FAMILIAR WITH UNSTRUCTURED DATA.

Unstructured Data is free-form data that has highly malleable content such as emails, Microsoft Word documents, Microsoft Excel spreadsheets, Microsoft PowerPoint files, text messages, Facebook posts, audio files, photos, and movies.

Unstructured data is anything where the content does not follow a particular layout, format, or formula. Hence the term “unstructured.”

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STRUCTURED DATA IS THE OPPOSITE OF UNSTRUCTURED DATA

The opposite of unstructured is fielded data, or data that is structured. Typically thought of as databases, these can also be (paradoxically) spreadsheet pages, load files, or log files. Structured data can also refer to items with metadata, including emails, Microsoft Office documents, and operating system entries.

We have found that much of the structured data we deal with is tracking, tracing, and transactional. This is the data that records your Amazon® purchase: what you bought, when you bought it, how many units, payment information, and shipping information.

All of this is structured (fielded) data. When you receive the product and post a review, you can type whatever you like. You are not typically limited by content, only by length. Your review is unstructured data.

> ***IN REALITY, DATA SCIENTISTS CONSIDER ALL DATA TO BE STRUCTURED*** *(I.E., ON THE STRUCTURED DATA "SPECTRUM").*
>
> *As such, three axes of structure can be used to describe any data:*
>
> - ***How structured is the content?***
> - ***How structured is the storage?***
> - ***How structured is the retrieval?***
>
> *All data systems can be measured along these three axes. Thus, there is, truly, no such thing as "unstructured data"; there is only less-structured data. This means that you're already working with a version of structured data anytime you're working with Electronically Stored Information (ESI).*

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By this analogy, we could consider email as "semi-structured data" because it combines fielded data and free-form data. Likewise for text messages, instant messaging, pictures, audio files, etc. All data tend to have some degree of consistent, highly defined, highly structured data that controls various aspects of tracing the creation, storage, usage, retrieval, and even data disposal.

This always reminds me of the movie "The Matrix" when the young boy tells Neo, "The truth is, there is no spoon."

> ***YOUNG MONK:*** *"Do not try and bend the spoon—that's impossible. Instead, only try to realize the truth."*
>
> ***NEO:*** *"What truth?"*
>
> ***YOUNG MONK:*** *"There is no spoon."*

So, using terms like structured data and unstructured data when all data has various degrees of structure may be a misnomer.

Some other descriptors may be helpful:

- ***Human vs. Instrumental***
- ***Subjective vs. Objective***
- ***Entered vs. Recorded***
- ***Manual vs. Automated***
- ***Vague vs. Precise***
- ***Analog vs. Quantum***
- ***Variable vs. Fixed***
- ***Free-form vs. Defined***
- ***Content vs. Context***
- ***Words vs. Numbers***

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Other characteristics are also essential to recognize. Chief among these is the cost curve of structured data versus the cost curve of unstructured data. This is deserving of its own chapter, but suffice it to say that the curves are very different.

Unstructured data tends to have a linear cost curve. Each document has to be handled in a similar way – there is a fixed cost per unit. As a result, the more data you have, the more it costs. Even with advanced technology, we can change the slope of the line, but it tends to remain a line.

To be sure - we have made advances. For example, technology assisted review (TAR) can help separate which documents we should look at from which ones we likely don't need to look at. But then, we fall back into a fixed-cost-per-unit for every document we end up looking at.

UNSTRUCTURED DATA = LINEAR COST PER ADDITIONAL UNIT, BUT DIMINISHING VALUE PER DOCUMENT

Structured data, on the other hand, has a curve reflecting accelerated economies of scale, almost approaching fixed costs. This is an upfront investment with little to no marginal costs for additional records per data source.

Moreover, there is compound value gained for each additional data source, even while the additional incremental cost is relatively fixed. Due to this, we say that each new structured data source (as a whole) represents an incremental cost but an exponential value.

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STRUCTURED DATA = DIMINISHING COST PER UNIT, BUT EXPONENTIAL VALUE PER DATA SET

Those cost curves are subject to change over time as technology, processes, and skills change. For all these reasons, we suggest understanding the paradigm of structured versus unstructured by using the acronym ACTION versus VERBAL.

A-C-T-I-O-N DATA

ACTION data is focused on the transaction, the activity, the metadata, and system data associated with that activity. This data is Ambient, Contextual, Transactional, Instrumental, Operational, and Navigable.

This is not what someone said they did (that would be the content of their messages, voice mails, photos, etc.). Instead, it is what they did.

V-E-R-B-A-L DATA

What is the opposite of ACTION data? That would be VERBAL data. And unlike ACTION data, VERBAL data is Variable, Emotional, Reflective, BLOB, Artistic, and Linguistic.

It's helpful to think of the data world in two groups: ACTION data and VERBAL data, especially when we recognize that many data files contain elements of both. Fact Crashing is focused on ACTION data. When VERBAL data is available, we seek ways to turn it into ACTION data instead.

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TURN VERBAL DATA INTO ACTION DATA

By adding metadata to VERBAL data, you can transform it into ACTION data. This is done by extracting metadata from VERBAL data or by creating metadata from the VERBAL data.

We extract metadata when we pull fielded data from email headers and then use those fields to filter those emails. We also do it when drawing file properties from Microsoft Office documents and then using those fields to filter those files.

We create metadata when we analyze the content of free-form files and fields to extract information from them: when we use review teams to "tag" and categorize documents.

- ***Do they contain personally identifiable information (PII)?***
- ***Do they reference issues A, B, or C? Do they relate to concepts 1, 2, or 3?***
- ***Can they be categorized as an invoice, contract, calendar entry, SPAM?***
- ***Is the content responsive?***
- ***Is it privileged?***

When we identify, then record these characteristics, we are creating metadata.

Through coding, you enhance VERBAL data by adding ACTION data. In fact, whenever we analyze unstructured data, our computers rely on structured characteristics, even when those characteristics are transient or are behind the scenes.

CASE STUDY

Pandora® Music Streaming Service

When you like a particular song on Pandora, that system can recommend similar songs to you. How does it do this? Pandora does not listen to the music but instead relies on pre-recorded metadata.

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In Pandora, every song is categorized by Ph.D. musicologists using 400 different fielded characteristics found in the Music Genome Project. These cover the qualities of melody, rhythm, harmony, form, composition, and lyrics.

(See "How Pandora Radio Works", by Julia Layton at computer.howstuffworks.com)

It's a project that began in January 2000 and took 30 experts in music theory five years to complete. The Genome is based on an intricate analysis by actual humans (about 20 to 30 minutes per four-minute song) of the music of 10,000 artists from the past 100 years.

The analysis of new music continues every day since Pandora's online launch in August 2005. As of May 2006, the Genome's music library contains 400,000 analyzed songs from 20,000 contemporary artists. You won't find Latin or classical yet: Pandora is in the process of developing a specialized Latin music Genome and is still deep in thought about how to approach the world of classical composition.

Pandora and the Music Genome Project have translated something inherently VERBAL into something that is now ACTION.

ACTION data can be measured, compared, and ranked by algorithm. VERBAL data must be read by humans. This is costly and time-consuming.

In the early days of computer-assisted discovery, when we were mainly working with paper documents and scanning them to create repositories of TIFF images, we would send extensive collections of documents to lower-cost review teams. Their sole job was to "code" the documents.

This bibliographical coding populated fields such as Author, Subject, Date, Category, etc. These fields, in turn, became the basis of retrieval. The VERBAL data (the scanned images and their OCR text) was augmented with ACTION data.

But can't we just deal with the free-form text? Yes, but there are limitations.

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In the seminal Information Retrieval work of Blair and Maron (1985), "An Evaluation Of Retrieval Effectiveness For A Full-Text Document Retrieval System," the attorneys used the IBM STAIRS system. This was the first documented system that allowed Boolean searching (AND, OR, NOT, etc.) and proximity searching (adjacent to, same paragraph, etc.).

Since then, we have steadily improved full text searching with additional advanced functions, natural language processing, language translators, and advanced information retrieval techniques for clustering, space vector machines, concept searching, etc.
Blair and Maron strongly criticized the full-text retrieval system as ineffective for identifying the correct documents. Since then, we've matured many technologies to help with the handling of free-form data.

ARTIFICIAL INTELLIGENCE CAN HELP WITH UNSTRUCTURED DATA, BUT STRUCTURED DATA STILL WINS.

These usually are lumped under some form of artificial intelligence. They are much better but still limited.

So, whereas in the past, we would bibliographically our documents so that they could be more efficiently searched, we sometimes forget that we can do the same thing today with emails, blogs, text messages, and other unstructured content. Better yet – we can do a lot with algorithms which keeps the cost down.

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Would you like to know if your emails contain Personably Identifiable Information (PII)?

There is an algorithm that can search, identify, and record that aspect. In doing so, you would extract ACTION data from your VERBAL data.

Would you like to analyze a large group of communications for emotional sentiment?

There is an algorithm that can analyze, assign, and record that aspect. Again, you just extracted some ACTION data from your VERBAL data.

So yes, we can handle VERBAL data. But it's labor intensive, expensive, subjective, and can have widely varying degrees of precision and recall. Thus, it is a best practice to prioritize other sources ahead of VERBAL data. This means prioritize ACTION data and use it to augment VERBAL data.

The end result is that ACTION data can make VERBAL data more cost efficient. Recognizing this is the essence of Fact-Crashing.

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PRINCIPLE 3

FRAME CASE ISSUES AS DATA-CENTRIC INQUIRIES

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– PRINCIPLE 3 –

FRAME CASE ISSUES AS DATA-CENTRIC INQUIRIES

One does not know all the claims and defenses when a case begins. This is an encouragement to force us to address these issues sooner rather than later, to the efficient benefit of the entire case.

If you want to take advantage of our current abundance of data, it helps to recast your case issues into objective, measurable analyses.

In Principle 2, we learned about the relationship between ACTION data and VERBAL data. Namely that to analyze VERBAL data, we leverage, extract, or create ACTION data.

When we frame case issues as data-centric inquiries, we identify which data we should leverage, extract, or create.

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CASE STUDY

Analysis of the Reasonable Standard of Care

If you want to test whether reasonable care was provided in an elder care home, then you might consider, instead:

- ***What was the on-shift staff to patient ratio?***
- ***How often are rooms visited?***
- ***How often do patients turnover?***
- ***What is the response time for health emergencies?***
- ***What is the usage of aspirin per patient per year?***

Based on these facts and others, the trier of facts can decide the ultimate truth. More importantly, these are facts that can be measured. You don't read emails and policies to learn this information. You draw this information from the systems that exist in the facility.

By recasting your case issues as data-centric inquiries, you open the door to leveraging data.

Like the Key Performance Indicators (KPIs) we use to manage business goals, your case inquiries need to be SMART goals:

- ***Specific***
- ***Measurable***
- ***Achievable***
- ***Relevant***
- ***Time-based***

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DATA CENTRIC EXAMPLE

If you want to know

Original Inquiry:
Is a non-exempt employee working off the clock?

Then rephrase that question with location, time, duration, and thresholds.

Revised Inquiry: "Did the employee (a) do job-related activities (b) away from the office (c) outside of normal shift (d) for more than 10-minutes (e) without otherwise demonstrating flexibility?" can be answered objectively with ACTION data.

This is not just a method to challenge your adversaries' positions. This can be done for both claims and defenses. It can be used to elicit your own case narrative.

This is not just a method to analyze your adversaries' positions. This applies to all parties. It can be used to expand on your own claims and defenses, identify factual data sources, and to control the entire case narrative.

You will find that this accelerates an aspect of trial preparation that is often postponed far too long – early case assessment. In numerous cases we've been involved in, over more than three decades, we've seen counsel jump into the mechanical steps of litigation before thoroughly analyzing all the claims, defenses, and their corresponding legal prongs. Before they engage in "early case assessment."

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Admittedly, one does not usually know all the claims and defenses when a case begins. However, this serves as an encouragement to force us to address these issues sooner rather than later, to the efficient benefit of the entire case.

DUPONT LEGAL MODEL

In 1992, E.I. DuPont de Nemours Co. conceived of the DuPont Legal Model. Through this revolutionary way of looking at the business of resolving disputes, DuPont went from 350 outside law firms and 150 vendors, down to 34 and 4. They saved millions of dollars by leveraging emerging technologies (the Internet and electronic billing), but also by focusing – demanding – early case assessments. In fact, their model relied on "early case assessment methods to shift the focus from processing a lawsuit, to resolving a business problem."

The DuPont Legal Model saved millions of dollars per year, accelerated resolution from an average of 39 months to just 22 months, and reduced their docket by 70% in just 7 years.

Furthermore, when DuPont and others looked at the impact of early case assessment, they found that it created a case cost savings of 28-50%.

Early case assessment becomes exponentially easier and more effective when you live in a world filled with data (hello, Internet) and you have a model for working with that data (hello, Fact-Crashing).

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PRINCIPLE 4

IDENTIFY, QUALIFY, AND PRIORITIZE DATA AS SOURCES

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– PRINCIPLE 4 –

IDENTIFY, QUALIFY, AND PRIORITIZE DATA AS SOURCES

Start Broad. Narrow Later.
Prioritize Last.

Once you start looking for data, you will start to identify a long list of potential sources. At the end of this exercise, your list will be shorter. You've separated the possible from the impossible. But you will likely still have a long list of data sources. That is a good thing.

The goal is to start thinking about your case issues as measurable inquiries, then you can begin the process of identifying the potential sources of data for answering those inquiries.

This is a multi-step process. Like hiring a new employee, you would like to have the largest pool of qualified candidates, followed by a process for choosing the best candidate(s) from that pool.

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PART 1: *Identify the Sources*

First, you identify potential data sources. Here it is helpful to be as expansive as possible. The more candidates, the better. There are many potential sources of data for almost any modern scenario.

When teaching law school classes on data systems for lawyers, there is an exercise we use. It relies on a hypothetical two-car fender-bender. We ask the students to identify data sources related to either the condition of the vehicles or the drivers' health. These are assessed before, during, and after the accident.

We try to have each student in the class identify one unique source. We have never failed to achieve this variety. The list includes traffic cams, neighborhood Wi-Fi, smartphone accelerometers, OnStar systems, computer carburetors, gym memberships, wearables, intersection induction coils, and even NSA satellites.

NSA Satellites? Yes. The question at this point is not whether the data can be acquired. That's for the next step. The only issue is to identify the options.



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So go broad. Think of any potential categorical sources such as:

- ***Corporate systems***
- ***Personal data***
- ***Municipal data***
- ***Utilities***
- ***Government systems***
- ***Facility systems***
- ***Transportation***
- ***Wearables***
- ***Cell carrier logs***
- ***Social media***
- ***Third parties***

By no means is this list complete, but it gives you an idea of the diverse categories of systems that can contain potential sources of data.

PART 2: *Qualify The Sources*

If you did part one right, you should have a long list of data sources. Some of those are going to seem obvious. Some will seem challenging. Some will seem unlikely or impossible to acquire or work with. So, we qualify them.

> ***SOME ARE IMPOSSIBLE. SOME ARE VERY CHALLENGING. SOME ARE JUST RIGHT.***

At the end of this exercise, your list will be shorter, having separated the feasible from the unfeasible. But, you may still have a long list of data sources. For the remaining sources, like adding ACTION data to VERBAL data, you will want to add qualifying metrics.

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Your list may be different from our list, but there are some things we like to know:

- ***Size***
- ***Source***
- ***Purpose***
- ***Availability***
- ***Accessibility***
- ***Incremental Cost***
- ***Incremental Benefit***

After populating this list, you can qualify your data sources. You will find that some are simply not accessible or cost too much. This is intended to be a rough cut. The next step is the refinment.

PART 3: *Prioritize the Sources*

Prioritizing your data sources is key to determining how many you need, where they are hosted, who is in control of them, and how you will acquire them. Compare the relative advantages of each data source to the relative disadvantages.

- ***How well will it address your issues?***
- ***Can you acquire the data?***
- ***Will it have the level of detail you need?***
- ***How long will it take to get it?***
- ***How much will it cost?***
- ***Will you be able to admit the results into evidence?***

It may only take one data source to resolve your issues. In some cases, we've dealt with more than 40 systems. It can vary. Once you have your list prioritized, you are ready to start reaping some benefits from Fact Crashing.

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In a typical wage and hour case, we deal with:

- ***HR records***
- ***Time and attendance***
- ***Payroll***
- ***Business-related application data***
- ***Cellphone carrier***
- ***Text messaging***
- ***Emails (Corporate and Personal)***
- ***Invoicing***
- ***Dispatch / Scheduling***

This list of systems is where we often end up. It's as if we have been implicitly Fact Crashing. Collectively, these can be sufficient to deal with a wide variety of on-the-clock / off-the-clock, misclassification, overtime, meal, and rest break issues. Again, your mileage may vary.

Note: What we are doing is just as important as what we are NOT doing. We are NOT reading the emails or text messages. We are NOT listening to voice mail and trade desk recordings. We are NOT reviewing surveillance videos. We are really focusing on the metadata and not the content.



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At least initially. Sometimes content is reviewed, but typically, only to create ACTION data, such as to classify emails as business or personal. Otherwise, everything is analyzed based on who, what, when, where, and how long. Now it's time to convert that implicit process into a scalable, repeatable, improvable, explicit processes.

CONTEXT IS THE NEW CONTENT.

When you focus on context, not content, other things get easier, as well.

Sometimes parties look for non-actionable bases for objecting to discovery --- it might be private, it might be privileged, it might be doctor-patient, it might be spousal. Consider that any privilege log would likely contain the contextual information we are discussing anyway, and you may agree that the objections fail quickly.

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PRINCIPLE 5

DATA IS SUBJECT TO PRESERVATION AND PROTECTION OBLIGATIONS

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– PRINCIPLE 5 –

DATA IS SUBJECT TO PRESERVATION AND PROTECTION OBLIGATIONS

"Unless the defendant did produce the jewel, and show it not to be of the finest water, they should presume the strongest case against him, and make the value of the best jewels the measure of their damages: which they accordingly did."

- Armory v Delamirie (1722)

The original duty-to-preserve case

(Report from Sir John Pratt, C.J.K.B.)

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DATA PRESERVATION

The data in databases are stored and organized differently than email, messaging, and user documents. Responsiveness is not dependent on the format of data. Responsiveness is determined by the content and the application to the current litigation or investigation. As such, responsive data, including database fields and content, are subject to discovery. By extension, they are also subject to data preservation obligations.

In my experience, to the extent that database records are part of an intentional, corporate system, many of those systems may already be configured to save data for long periods of time, if not indefinitely. These are often systems of record for items such as time-and-attendance, compensation, invoicing, inventory, and more.

This is due, in part, to the fact that many transactional records are relatively small when compared to free-form documents and emails and simultaneously have a great deal of intrinsic value due to their organization and structured retrieval.

However, some operational data - generated by logistical or ancillary systems, especially the instruments and monitors that make up the Internet of Things (IoT) - are more likely to generate large volumes of data with only a short-term value profile. These systems are more likely to have auto-expiration (i.e., deletion) based on time (e.g., 30-day, 14-day, or even 5-minute retention, or less) or volume (e.g., 100 GB log file limits).

NOT ALL DATA (RETENTION) ARE CREATED EQUAL.

As you begin applying Fact Crashing for the Identification, Qualification, and Prioritization of data sources, bear in mind that default data retention can vary, and you may need to exercise some form of case-specific data preservation.

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DATA PROTECTION

Data Protection is starting to have a big influence on discovery. Generally speaking, there is a global rise in data protection and data privacy concerns. Some argue that this is long overdue, and we have been too lackadaisical with how we've treated financial, health, personal, or sensitive data in the past.

Others argue that users have traded aspects of their personal privacy in return for participation in online communities and to subsidize the free news and information services they enjoy. Regardless of how we got here, we are here now. This does not mean that data is exempt from discovery. Instead, it means that additional or explicit steps may be necessary to manage and limit the disclosure, use, and dissemination of that data.

In many ways, Data protection (aka data privacy), is more advanced in the EU. As noted in the EU, we should consider how to minimize the amount and extent of data disclosure to the bare minimum necessary to the circumstance. This restriction is a European equivalent to the FRCP concept of proportionality but applied specifically to scope.

Rather than squeezing an entire book on data protection into this single chapter, I'll simply acknowledge that data protection is essential and discuss a few well-used techniques for it in litigation. Common data protection techniques include:

- ***Motion to Seal***
- ***Protective Orders***
- ***Appointment of a Data Neutral***
- ***Data Minimization***
- ***Encryption in Transit***
- ***Encryption at Rest***
- ***User Access Control***
- ***Roll-Based Access Control***
- ***Anonymization***

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Under the umbrella of Anonymization are a variety of sub-techniques. Some of those, as listed by David Baladan at DataVersity, are:

- ***Aggregation***
- ***Encryption***
- ***Generalization***
- ***Hashing***
- ***Pseudonymization***
- ***Perturbation***
- ***Randomization and Suppression***
- ***Data De-Identification***

See an excellent discussion of Pseudonymization, Anonymization, and De-Identification published by Bryan Cave Leighton & Paiser, at www.bclplaw.com/en-US/insights/at-a-glance-de-identification-anonymization-and-pseudonymization.html.

To add further granular detail to the issue, the United States National Institute for Standards and Testing (NIST) has further expanded Data De-Identification into a broader category with 5 sub-techniques:

- ***Suppression***
- ***Averaging***
- ***Generalization***
- ***Perturbation***
- ***Swapping***

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FACT CRASHING IS LIKE TAKING THE EXPRESS LANE DURING RUSH HOUR. IT GETS YOU TO THE SAME PLACE, JUST A WHOLE LOT FASTER.

Suffice to say, an entire other book could be written on techniques for protecting data and balancing access with levels of detail and degrees of control and accountability.

Overall, U.S. courts tend to lean in favor of discovery. This can be traced back to the first promulgation of the Federal Rules of Civil Procedure in 1938 and the rules related to discovery, primarily written by Professor Edson Sunderland with his passionate support for disclosure and summary judgment.

U.S. courts favor discovery of relevant, proportionate, responsive, non-privileged data. Officially, data privacy is not an exception. It is not a privilege or limitation. Unofficially, it is a very real societal concern and a limitation on many productions.

Since the rules and the courts favor productions but society favors discretion, finding ways to raise the protections around exchanging data is appropriate. It is even more suitable for exceptionally well organized, readily accessed, quickly analyzed structured data.

As you work through Fact Crashing, consider data preservation and data protection upfront. This can save a lot of angst and anguish on the back end.



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PRINCIPLE 6

DATA RELIABILITY STARTS WITH PROPER COLLECTION

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– PRINCIPLE 6 –

DATA RELIABILITY STARTS WITH PROPER COLLECTION

"Give me six hours to chop down a tree and i will spend the first four sharpening the axe."

- Abraham Lincoln

In order to properly analyze data tomorrow, you need to make sure that you properly collect it today.

This concept, when it comes to collecting data, means to plan and prepare before for collection applying brute force efforts. Any throughout the collection process, documentation is critical. No detail is too small.

The following four steps help to provide a better understanding of your data sources.

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STEP 1: *Understand the possible points of collection*

Database records can often be presented (reported) in a wide variety of ways. It's important to understand the various points of collection, often identified as part of Principle 4 (Identify, Qualify, and Prioritize) but not always vetted for collection defensibility.

You may find yourself asking questions such as, "What are the valid points of access and reporting? Are default (canned) reports available?" Sometimes the easiest point of collection can be a report that is already built into the system. At other times you may need a custom inquiry and/or access to the underlying data via the Application Programming Interface (API).

Regardless of the point of collection, there are a few items that you want to document as part of the collection process.

- ***Identify all points of access (e.g., where/how you can get the data)***
- ***Determine the best point of access used for collection***
- ***Document criteria used (e.g., date range, filter(s), etc.)***
- ***If Report, version of that Report***
- ***If Custom Query, document that Query***
- ***Record person(s) involved in collection***

Remember, not all points of access are created equal. Therefore, you should always consider what may be available via one point of access, but not another.

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STEP 2: *Sample the Data*

While it may be tempting to just "go ahead and run the report," consider testing first, especially when you have large data sets. Run a sample export/report that will allow you to evaluate the accuracy of the collection before dumping years of data and potentially negatively impacting the business. For example, if you have a three-year time period in question, pick a month or two that have the most systems in common and request the data for that month. A few areas that sample data can help with include:

- ***Identifying additional fields that need to be included***
- ***Identifying unexpected data anomalies in certain fields***
- ***Identifying additional look-up values that need to be defined***
- ***Identifying filters that might be applied (with a caveat, below)***

Recently, we went through this exact exercise, picking a single month that had data from all the available systems in question. This allowed us to not only validate the collection queries, but also evaluate how potential analyses would be performed so that we could further prioritize efforts.

STEP 3: *Collect (aka Extract) the Data*

Now, it's time to get all the data. Before you hit the big green GO button, always keep in mind that larger queries can impact business operations. Therefore, consideration of the timing of collection should always be part of your process.

Prior to collecting the entire data set, whenever available, establish KPIs (Key Performance Indicators) that can help you validate the export (see below for suggestions). While many systems may provide this information and/or error reports, not all are built that way, so being able to validate becomes a critical step.

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ACCURACY IN EXTRACTION IS NOT EQUAL TO RELIABILITY FOR PURPOSE.

Remember, document the entire process so that, if needed, it can be repeated. Being able to repeat a collection is not only good for defensibility, but it is also often used when updated criteria is provided (e.g., expanded date range).

STEP 4: *Validate & Verify the Data*

This is when we ask questions like "What do we expect to get? Did we get what we expected? Did the client send us what they think they sent us?"

The goal here is to validate expectation versus reality. There are some very complex routines that can be used, but even the simple ones can help catch simple adjustments that need to be made prior to analysis.



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CONSIDER THE FOLLOWING WHEN LOOKING TO VALIDATE A COLLECTION.

- ***Date Range***
- ***Record Count***
- ***Field Count***
- ***Entity Count***

For individual fields, consider:

- ***Field Definition***
- ***Field Name***
- ***Field Type***
- ***Field Domain***
- ***Field Range***
- ***Field Checksum***

If validation is ensuring that you properly conveyed the information from point A to point B, then verification is ensuring that you have the right data. Comparing data to contemporary (i.e., run an account balance) or historical reports (e.g., end-of-year financials) can provide confidence that you have not over or under collected data.

This is also why it may be more valuable to collect in a scope sufficient to confirm against these types of reports, then conduct further filtering from the initial extraction corpus. You need to have these expectations documented prior to collection.

> ***DOCUMENTATION IS A KEY ELEMENT OF PROPER COLLECTIONS.***

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BEST PRACTICE

It's not uncommon to pull data two or three times (or more). Make your plan as if that might happen. Have the right request, query, and results to hand back to IT with a modification to say, "Let's do it again, slightly different."

STEP 5: *Inventory & Store the Data*

All too often I see parties pull down data and then immediately start analysis of that data. Instead, you should document the inventory of everything received, as well as maintain that inventory in your system of record with an "original" copy of the data stored for the file.

Congratulations. Now you have a great data set. And with that solid, reliable, well-documented data collection, any inevitable downstream issues can be subjected to a much narrower root-cause analysis. And should you need to re-collect or refresh data, you have all the necessary information to do so quickly and reliably.

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PRINCIPLE 7

DATA UNDERSTANDING IS REQUIRED FOR PROPER ANALYSIS

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– PRINCIPLE 7 –

DATA UNDERSTANDING IS REQUIRED FOR PROPER ANALYSIS

"It was six men of Indostan
To learning much inclined,
Who went to see the Elephant
(Though all of them were blind),
That each by observation
Might satisfy his mind."

THE BLIND MEN AND THE ELEPHANT

– John Godfrey Saxe (1872)



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Like the Hindoo fable of the 5 blind men trying to describe different parts of an elephant, databases look completely different to different users. To truly understand data, you should think of it as a three-legged stool: System Admin (e.g., IT); Business Owner (e.g., Sales) and End User (e.g., Salesperson).

Having these three perspectives will help uncover some nuances to answer questions like:

- ***Are users using the system as intended?***
- ***Is IT aware of how the business is using the system (reality versus design)?***
- ***What modifications have been made from business necessity?***

These are all simple and yet all too common situations we've seen happen at no fault of anybody, just a reality of business. For example, users decide themselves to use a field or workflow a different way than it was intended because "it was just easier."

It's important that this process focuses on understanding the realities of the data, not judging the business as to "why."

It's important that this process focuses on understanding the realities of the data, not judging the business as to "why." This means simply understanding and documenting what the data actually contains and the information it represents, not spending time (yet) on why the organization made certain data choices, or even certain system choices. That may come later.

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MISSING LEGS

It's not uncommon to be in a situation where you are missing legs (e.g., the HR person who knows about this legacy system is no longer with the company). That does not mean you can't proceed; it just means that you should do so while understanding that you are balancing on two legs.

> ***A CLIENT TOLD ME RECENTLY, "LEGS? HECK, I DON'T HAVE A STOOL."***

While not common, this does happen from time to time. Here, you may have to ask more questions of the data rather than people. (Hint: It may be helpful to ask the questions below as it relates to the data, which in turn will help to verify what is said.)

- ***Is the data in this field what I expected?***
- ***Is the range/variety of data what I expected?***
- ***Are there an unusual or unexpected amount of "NULL" values?***

PROFILE THE DATA

As outlined in Principle 6, there are efficient ways to quickly establish baseline KPIs for validation. The same holds true for profiling a data source for better understanding. Some frequent data points that help establish this profile include:

- ***Record Count***
- ***Date Range (and any gaps)***
- ***Value Domain and Range***
- ***Average Values (and Outliers)***
- ***Common Value(s) and Frequencies***

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CONTINUOUS ACTIVE LEARNING

Every interaction you have with the data can teach you something, confirm what you expected, or give you the unexpected. We also hear a lot of last minute "Oh yea, I forgot to tell you." This is, because when you are looking back years into a set of data those nuances are not always top of mind. If these nuances are not taken into consideration as part of analysis, your results can be skewed.

> ***"LEARN CONTINUALLY - THERE'S ALWAYS 'ONE MORE THING' TO LEARN!"***
>
> *– Steve Jobs*

Look to learn about these types of scenarios within your data set.

> ***"There was a retention failure at one point Because the data transfer to the archive server failed for a few weeks before we caught it."***

> ***"Last year, we stopped using field [A] for [Location], but also started using fields [D] and [E] for [Time] and [Vehicle]."***

> ***"We generally use field [M] to report and run payroll, but raw data is in fields [Q], [R], [S], and [T]."***

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CASE EXAMPLE

The system was put into place 25 years ago. But 5 years ago, we needed to store a new value in the system and could not find the source code to reprogram the core system. We ended up using an old, abandoned field for this new value. So, the product "Amazon Standard Identification Number (ASIN)" is stored in the "fax number" field.

There are so many nuances that happen to data in the regular course of business, it's safe to assume that there will be some in your data. Seek to learn and understand it throughout your endeavor.



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PRINCIPLE 8

USE DATA TO SHAPE OTHER DISCOVERY

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– PRINCIPLE 8 –

USE DATA TO SHAPE OTHER DISCOVERY

ECONOMY —

Getting the right inputs at the lowest cost

EFFICIENCY —

Getting the most from the inputs

EFFECTIVENESS —

Getting the expected results from the outputs



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To be honest, during my time at the Tulane Freeman School of Business, economics was not my favorite subject. Over time, I've come to respect economics, and I've seen first-hand the impact of economics, intentional or unintentional, on the practice of law.

Some of that we saw in various cases (e.g., Zubulake) where economic forces were used to inject proportionality into discovery through cost-shifting. Some of that we saw in the changes to the Federal Rules of Civil Procedure around proportionality.

In the past decade, I have increasingly found that understanding the true costs of discovery, and the change of those costs over time and quantity (i.e., the infamous economics "cost curve") can help inform better decisions about how to conduct discovery, and how to resolve disputes.

THE COST CURVE OF UNSTRUCTURED DATA

With unstructured data (emails and documents) we are accustomed to a linear cost curve. Every document has a similar cost – the cost of human review. Technological efficiencies can change the cost slope (less cost per document) or the cost duration (ending the review sooner), but otherwise the cost of review (and privilege review) is linear.

To make document review even worse, it is not unusual in litigation to not know, initially, which custodians, events, or dates are of most interest. This is the "fog of litigation." To navigate this unknown, parties traditionally do what they do best – review documents and records. They navigate through the institutional knowledge of the company as recorded in emails and revealed through interviews.

While traditional, this approach is expensive. Not only because of the linear cost of document review, but because of the broad initial scope with which many investigations and litigations start. This linear cost, plus broad scope, creates a double impact to cost.

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THE COST CURVE OF STRUCTURED DATA

However, structured data has a very different cost curve. Structured data can initially cost more than unstructured data on the front-end to ensure that you understand what the data represents. At the same time, after that initialization, structured data costs much less than unstructured data on a marginal (record-by-record) basis.

This is, in part, because by design structured data records are highly consistent from record to record. Not in their content, which can vary from record to record, but in their format, the types of values they contain, the spectrum of values they are allowed contain (domain), or in the list of actual values they contain (range).

FOR EXAMPLE

A field could be a date (type) written in European day.month.year order (format) and be allowed to have value from January 2019 thru December 2021 (domain). But, in practice, only has records from July 2019 (range).

While this has variability (a wide range of dates), it also has sufficient consistency to be used for sorting, filtering, and targeted searching.

Once the way a particular field is populated and used is understood, those characteristics can be easily anticipated and rapidly extrapolated across additional records. Hence the marginal cost can be next to zero.

However, the initial learning the manner of population, the application, the data type, the format, the domain, and the range, can be expensive. Hence the upfront cost can be high – regardless of volume.

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In fact, small volume sets can counter-intuitively be more expensive to initially learn than larger volume data sets because of the lack of volume records to confirm or challenge the learning-curve representations or assumptions.

Generally, the cost curve for structured data is a rapidly downward slope with low to zero cost per each additional record. Dealing with 1,000,000 records is not substantively more expensive than dealing with 1,000 records – at least from a data management and evaluation basis. As a result of this different cost profile, it is economically attractive to deal with structured data first, and then to use structured data to refine and clarify the scope and relevancy of unstructured data.

FOR EXAMPLE

The statutes of limitations can determine the legally allowed date range of a claim, but actual payroll data and the actual coding of hours might better clarify the practical class period for an unpaid overtime case.

Putative class members for a products liability matter might be better identified through actual sales records than through internal email communications. Further – in such a case, structured data can not only illuminate the case boundaries better than unstructured data, but also better define which unstructured data should even be considered or reviewed.

Similarly, putative class members for a products liability matter might be better identified through actual sales records than through internal email communications.

Further – in some cases structured data can not only illuminate the case boundaries better than unstructured data but also better define which unstructured data should even be considered or reviewed.

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Consider the following – imagine a market-timing case where the case team reviews hundreds of thousands of emails. They then use those emails to determine which stock trades they need to dig into. The cost of reviewing those hundreds of thousands of emails can be millions of dollars.

The alternative approach, the Fact Crashing approach, is to examine the stock trades, even hundreds of millions of trades, to first determine which transactions are of interest, and then review the emails most closely related to only those trades.

By prioritizing structured data in front of unstructured data, the cost (and speed) of finding and investigating trades of interest, and even resolving the dispute, can be dramatically reduced.

> ***STRUCTURED DATA ANALYSIS CAN STREAMLINE UNSTRUCTURED DATA REVIEW.***

Because the cost curve of structured data is so different, the per-record cost is negligible, but the per-record value is not. As such, high-volume record sets become a benefit instead of a detriment. It is a benefit because each individual record has potential value, and because large collections of records can reveal trends, chronologies, statistical variations, and other metrics in ways that structured data cannot.

> ***THE MORE DATA RECORDS YOU HAVE, THE GREATER THE VALUE. THE MORE EMAILS, THE GREATER THE COST.***

As a result, structured data can be used to define, or shape, many of the dimensions of a given litigation, including:

- ***The class period***
- ***The putative class members***

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- ***The potential exposure***
- ***The particular transactions at issue***
- ***Potential employees (or custodians) of interest***
- ***Which product models might be defective, or at issue***
- ***The key dates of communications of interest***

In return, these dimensions, when used as filters, can lead to great efficiencies in the collection, processing, categorization, and review of unstructured data from memos, emails, texts, instant messaging, documents, and social media.

Some issues are also better analyzed by measurements over time instead of something happening just one time. As parties start to look at data trends instead of point values, they begin to realize that trends and patterns are often times more indicative of problems and solutions than single inflection points. Or, said differently, a practice and pattern of behavior is what we're looking for, not a single utterance from a single employee in a single email.

THE SMOKING GUN IS NOW THE SMOKING TREND.

Whether you are looking for behavioral trends, or looking to reduce the cost of finding individual statements, structured data has huge potential.

In summary, because structured data has a different cost curve (and benefit curve) than unstructured data, it is often more economical to try and resolve the entire dispute with structured data. Even when you cannot, you may be able to resolve part of the dispute and limit (shape) the size, complexity, and costs of your document discovery.

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PRINCIPLE 9

USE DATA TO WORK TOWARD EARLY RESOLUTION

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– PRINCIPLE 9 –

USE DATA TO WORK TOWARD EARLY RESOLUTION

Experience will abundantly show that above a hundred of our lawsuits arise from disputed facts, for one where the law is doubted of.

– Sir William Blackstone, Commentaries (1765-1769)

Even when structured data cannot solve the entire issue, it can sometimes solve a meaningful portion and lead to more efficient resolution.

MOST DISPUTES ARE FACTUAL

Sir William Blackstone underscored the centrality of fact issues in his commentaries where he points out that most disputes are factual disputes. Therefore, it stands to reason if you can resolve the factual disputes in a case, then you stand a great chance to fully resolve, or dramatically narrow, the entire dispute.

Therefore, it stands to reason if you can resolve the factual disputes in a case, then you stand a great chance to fully resolve, or dramatically narrow, the entire dispute.

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STRUCTURED DATA ARE FACTS

Since structured data is typically more objective, more abundant, more granular, and less ambiguous than unstructured data, it lends itself to resolving factual questions.

At a minimum, it can sooner inform the controlling party of potential liabilities and damage exposures. All of this is conducive to early case resolution.

We have seen cases that were poised for entrenched litigation involving dozens of custodians and millions of emails, resolve in a matter of months through the surgical application of structured data.



We have also seen cases where classes have been established, or dismissed, solely based on structured data. We have seen cases where defendants have made settlement offers based on structured data, and cases where plaintiffs have walked away due to structured data.

While some cases do have genuine issues of law, and quasi-issues of law, even those can be partially or fully resolved when factual disputes or ambiguities are resolved. The opportunities for early resolution can occur before suit is filed, immediately after suit is filed, through the deposition process, or within a motion for summary judgment.

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SUMMARY JUDGMENT

In the U.S., summary judgment is a de facto expectation in many cases. The history of the summary judgment goes back to the early legal history of the U.S., and before that, England.

In 1855, the English Parliament promulgated Keating's Act providing a summary judgment procedure for the collection of bills of exchange. Since that time, England, and then the American Colonies, then the U.S., have all enacted procedures for various forms of Summary Judgment.

The most impactful of these enactments was the Federal Rules of Civil Procedure of 1938, where Law Professor Edson Sunderland demonstrated his staunch support.

Today, if you agree that Summary Judgment is where undisputed facts can win the day, then structured data can provide undisputed facts better than unstructured data.

DEPOSITIONS

Depositions are another area affected by structured data. We have seen litigators successfully leverage structured data in the deposition process to impeach a witness or to subtly (or not-so-subtly) demonstrate to opposing counsel, via deposition questions and exhibits, the strength or weakness of a given position.

> ***"WE'RE NOT HERE TO LEARN WHAT HAPPENED; WE ALREADY KNOW WHAT HAPPENED. INSTEAD, WE'RE HERE TO SEE IF YOU ARE A TRUTHFUL WITNESS."***

Counsel have acknowledged that knowing the facts in advance can turn depositions from an Inquiry to an Inquisition.

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PRINCIPAL IX SUMMARY

In 1992, the chemical giant, Dupont, evolved what was quickly recognized as a revolutionary litigation model, completely rethinking the relationship between the company and outside counsel and the approach to risk and litigation. It became known as the "Dupont Model."

Much of it focused on early case assessment. Dupont proved that the advantage of early case assessment is better case resolution. Today, structured data is finally delivering that ability on a much more economical basis.

Whether through early case assessment, summary judgment, depositions, mediation, arbitration, settlement discussions, hearings, or pleadings, there are many windows of opportunity to resolve the factual disputes in each case using structured data.

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CONCLUSION

The digital world has handed us a gift.
How we use it is up to us.

We now live in a time of digital pioneers, all looking to find new ways to combine the relatively recent inventions of mobility, location, and social media to enable a new standard of living in the world.

The by-product of this innovation is data. Huge volumes of data. Reflecting human activity.

This is a source of evidence that has not previously existed in any comparable volume, diversity, granularity, or applicability. It is, literally, a new type of evidence.

This new evidence provides us the rare, once-in-a-generation ability to rethink how we resolve disputes. How we navigate the cost of litigation with the goal of litigation.

> ***FACT CRASHING IS THE FIRST PUBLISHED FRAMEWORK FOR DEALING WITH THIS NEW TYPE OF EVIDENCE, AND THIS NEW WORLD.***

I hope you find, as have so many of our clients, that this provides a unique opportunity to treat traditional disputes as business problems locked in the courts because of a scarcity of information, and Fact Crashing as a way to unlock that log jam.

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ABOUT THE AUTHOR



It takes years to become an overnight success.

For the past 25 years, Dan Regard has stood as a visionary and vanguard for domestic and global issues revolving around the use of data analytics.

His experience as a consultant and respected subject matter expert continues to make him a sought-after speaker, educator, and clinician, whether it be for legal retreats, judicial training events, or law firm client conferences.

A programmer and an attorney by training, Dan has conducted system investigations, created data collections, and managed discovery on over a thousand matters – with national and international experience advising on eDiscovery, forensics, structured data, and information management issues.

Dan has received a Band 1 ranking from CHAMBERS AND PARTNERS for 5 consecutive years. In addition, Dan plays an active leadership role in the Sedona Conference, the Electronic Discovery Institute (EDI), and the Georgetown Global Advanced Electronic Discovery Institute (AEDI).

ACKNOWLEDGEMENTS

This work would not have happened without the support of my wife, Liz, and my home team, Amelia and Felicity. I would also like to the thank the following for their insight and contributions to the development of Fact Crashing:

Hunter McMahon | Jimil Patel | Aaron Crews | Judge John Facciola (ret'd)
Judge Andrew Peck (ret'd) | Robert Owen

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